

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 7, 2026, AT 8:30 A.M.

City of Inglewood (2023) 96 Cal.App.5th 983, 994.) To that end, “[a] dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,” or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Ibid.* [internal quotation marks omitted].) Importantly, plaintiff must plead the public entity had ownership or control of the property at the time of the injury. (*Tolan v. State of California ex rel. Dept. of Transportation* (1979) 100 Cal.App.3d 980, 984.)

Streets and Highways Code section 90 provides the Department of Transportation “shall have full possession and control of all state highways and all property and rights in property acquired for state highway purposes.” (Sts. & Hy. Code, § 90.) Additionally, the Department of Transportation is responsible for improving and maintaining the state highways. (*Id.* at § 91.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state a dangerous condition of public property cause of action against defendant as there are insufficient allegations that defendant owned or controlled the area where the alleged dangerous condition of public property existed.

Accordingly, defendant’s demurrer is sustained with leave to amend as to the fourth cause of action. Plaintiff shall file and serve an amended complaint on or before **May 18, 2026**.

15. S-CV-0056216 SCHLEIN, BRIAN v. PACHECO-ZEPEDA, LUIS

Defendants Luis Alberto Pacheco-Zepeda and Lilyana Marie Jordan’s Demurrer to Plaintiff, Brian Schlein’s Complaint

Defendants demurs to the second cause of action for intentional tort in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the second cause of action. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of

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law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Here, a careful review of the complaint and taking all factual allegations in the complaint as true, plaintiff alleges facts sufficient to minimally state the second cause of action for intentional tort of assault and/or battery. Accordingly, defendants' demurrer is overruled in its entirety.

Defendants Luis Alberto Pacheco-Zepeda and Lilyana Marie Jordan's Motion to Strike Portions of Plaintiff Brian Schlein's Complaint

Defendants move to strike paragraph 10(c), prayer 14(a)(2), and the second cause of action for intentional tort in plaintiff's complaint. (Code Civ. Proc. §§ 435, 436.)

Punitive damages are available "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294, subd. (a).) Malice is "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*Id.* at § 3294, subd. (c)(1).) Oppression is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (*Id.* at § 3294, subd. (c)(2).)

Here, a careful review of the complaint and taking all factual allegations in the complaint as true, plaintiff alleges facts sufficient to minimally state the second cause of action for intentional tort of assault and/or battery and a prayer for punitive damages. Accordingly, defendants' motion to strike is denied in its entirety.

Defendants shall file and serve an answer to plaintiff's complaint on or before **May 18, 2026**.

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